

Himanshu Singh vs Rashmi Singh on 18 May, 2026

HIGH COURT OF JUDICATURE AT ALLAHABAD

Neutral Citation No. - 2026:AHC:114087

HIGH COURT OF JUDICATURE AT ALLAHABAD

MATTERS UNDER ARTICLE 227 No. - 5083 of 2026

Himanshu Singh

.....Petitioner(s)

Versus

Rashmi Singh

.....Respondent(s)

Counsel for Petitioner(s)

:

Ashok Kumar Mishra, Avesh Mishra

Counsel for Respondent(s)

:

Rashid Ali

Court No. - 5

HON'BLE VIKAS BUDHWAR, J.

1. Heard Sri Avesh Mishra, learned counsel for the defendant-petitioner and Sri Rashid Ali for the plaintiff-respondent.

2. The case of the defendant-petitioner is that the marriage of the defendant-petitioner stood solemnized with plaintiff-respondents on 24.11.2024 and they are living separately. An application for cooling of period was preferred which came to be rejected on 10.02.2026, against which Matters under Article 227 No.2372 of 2026, Himanshu Singh vs. Rashmi Singh came to be preferred, in which on 23.02.2026, the following order was passed:-

"1. This petition has been filed for the following reliefs:

"a.To set aside the order dated 10.02.2026 passed by Principle Judge Family Court in case no. 489 of 2025 (Rashmi Singh v/s Himanshu Singh) under section 13-B of Hindu Marriage Act, as well as further be pleased waived the cooling period of six months as provided in Section 13-B of Hindu Marriage Act, otherwise the petitioners shall suffer irreparable loss and injury b.To direct the court concerned to entertain the case no. 489 of 2025 (Rashmi Singh v/s Himanshu Singh) under section 13-B of Hindu Marriage Act and pass a decree of dissolution of marriage in favour of petitioner."

2. The application filed for waiving off the cooling period has been rejected by the court below by order impugned.

3. It has been submitted by learned counsel for the petitioner that application for waiving off the cooling period is not happily worded and the petitioner may be permitted to move a fresh application.

4. In view of the same, the petition is disposed of with liberty to the petitioner to move a fresh application with better particulars. In case, such an application is moved, Principle Judge (Family Court) will decide the same expeditiously preferably within a period of four weeks, considering the guidelines issued by the Hon'ble Supreme Court in case of Amardeep Singh vs. Harveen Kaur; (2017) 8 SCC 746 as well as judgment of this Court in Matters Under Article 227 No.1886 of 2020 (Smt. Pratibha v. Gaurav) and without being prejudiced by the order impugned dated 10.02.2026."

3. Thereafter now, the impugned order has been passed on 25.03.2026 rejecting the application for waiving off the cooling period, by the Principal Judge, Family Court, Sonbhadra.

4. Questioning the said order, present petition has been preferred.

5. Learned counsels for the parties submit that a direction be issued for disposal of the suit in terms of the Section 21-B of Hindu Marriage Act, 1955.

6. In the opinion of the Court, once statute provides for expediting and disposal of the suit in a time bound manner, then in the circumstances, it is required from the court below to expedite the suit and conclude the same as per the mandate contained in Section 21-B of the Hindu Marriage Act, 1955.

7. In view of the above, the writ petition stands disposed of.

(Vikas Budhwar,J.) May 18, 2026 N.S.Rathour